2012 OCT 26 PM 3:47

Bernard J. Youngblood
Wayne County Register of Deeds
October 26, 2012 03:47 PM
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Liber:50233 Page:1191

MEMORANDUM OF LEASE

THIS MEMORANDUM OF LEASE ("Memorandum") is executed as of October 12, 2012, by ALDI INC. (MICHIGAN), a Michigan corporation ("Lessee").

WHEREAS, Lessee and CANTON SHOPPING CENTER COMPANY, L.L.C., a Michigan limited liability company ("Lessor"), entered into a Lease dated as of December 19, 2007 (the "Lease"), for the rental of approximately 18,737 rentable square feet of real property located at 42053 Ford Road in the Township of Canton, Wayne County, Michigan (the "Premises"), together with all buildings, fixtures not leased from other parties, and other improvements located thereon and all rights appurtenant thereto, which premises is part of the real property more particularly described on Exhibit A attached hereto and made a part hereof.

All capitalized terms used in this Memorandum which are not defined in this Memorandum shall have the meanings ascribed to such terms in the Lease

THEREFORE, in consideration of the mutual promises and covenants contained in the Lease and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Lessor and Lessee state and agree as follows:

1. BASE TERM. The Term of the Lease has a Commencement Date of September 1, 2008 and the expiration date of the Base Term will be September 30, 2023.

2. OPTIONS TO EXTEND TERM OF LEASE. The Lease grants to Lessee the right to extend the Term of the lease for up to three (3) consecutive five (5) year periods.

3. LEASE. The Lease fully sets forth the names and addresses of the parties thereto and contains all of the terms, covenants, conditions and agreements to be performed by the parties thereto. The purpose of this Memorandum of Lease is to put all parties on notice of Lessee's rights and interest under said Lease with respect to the Premises. In the event of a conflict between the terms of the Lease and this Memorandum of Lease, the terms of the Lease shall control

[Signature page follows]

WHEREFORE, Lessee has executed and delivered this Memorandum of Lease as of the date first set forth above.

ALDI INC. (MICHIGAN), a Michigan corporation

By: _____
Ryan Fritsch, Vice President

STATE OF MICHIGAN)
) ss
COUNTY OF Ingham)

Personally came before me this 12 day of October, 2012 the above-named Ryan Fritsch, known to me to be the Vice President of ALDI INC. (MICHIGAN), a Michigan corporation, and acknowledged that the foregoing document was executed on behalf of said company and by its authority.

Brenda S. Bradley, Notary Public
State of Michigan, County of Clinton
My Commission Expires 6/4/2018
Acting in the County of Ingham

Brenda S Bradley
Notary Public, State of Michigan
Acting in Ingham County
My Commission Expires: June 4, 2018

Drafted by and when recorded return to:
Daniel H. Minkus, Esq.
Clark Hill PLC
151 S. Old Woodward Avenue
Suite 200
Birmingham, MI 48009

Tax ID Number: 71-053-99-0012-008
Address: 42053 Ford Road, Canton, MI 48187

EXHIBIT A

LEGAL DESCRIPTION

Land situated in the Township of Canton, County of Wayne, State of Michigan, and described as follows:

Part of the Northeast 1/4 of Section 14, Town 2 South, Range 8 East, Canton Township, Wayne County, Michigan, described as beginning at a point on the North line of Section 14, distant North 89 degrees 20 minutes 37 seconds East 250.00 feet from the North 1/4 corner of Section 14, and proceeding thence along the North line of Section 14, North 89 degrees 20 minutes 37 seconds East 600.00 feet; thence due South 599.89 feet; thence South 89 degrees 20 minutes 37 seconds West 600.00 feet; thence due North 599.89 feet (recorded as 600.00 feet) to the point of beginning, except the North 60.00 feet thereof taken for road purposes.